

**IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL APPEAL (SJ) No.1362 of 2025**

Arising Out of PS. Case No.-42 Year-2022 Thana- SC/ST District- Begusarai

Krishna Kumar @ Krishna Singh Son of Ram Pravesh Singh village-
Keshave, ps- Baruani, Dist- Begusarai

... .. Appellant/s

Versus

1. The State of Bihar
2. Vijay Das Son of Late Jannki Das village- Keshave, ps- Baruani, Dist- Begusarai

... .. Respondent/s

Appearance :

For the Appellant/s : Mr. Vaishnavi Singh, Advocate
For the Respondent/s : Mr. Sadanand Paswan, APP

**CORAM: HONOURABLE MR. JUSTICE PRABHAT KUMAR SINGH
ORAL ORDER**

7 06-08-2026 Heard learned counsel for the parties. Despite valid service of notice, nobody appears on behalf of respondent No. 2.

2. This appeal has been filed for setting aside order dated 18.03.2025 passed in a case registered for the offence punishable under sections 147, 148, 149, 341, 323, 324, 380, 354B, 427, 504 and 506 of the IPC and sections 3(i)(r)(s) and 3(2)(va) (w) of the Scheduled Caste/Scheduled Tribe and section 27 of the Arms Act, whereby the prayer for anticipatory bail of the appellant has been rejected.

3. As per F.I.R., 16 named accused persons including this appellant and 30-40 unknown persons abused informant by caste name and also assaulted informant, his wife, and thereby



caused them injuries. It is further alleged that accused persons committed loot in house of informant and also broke his household articles with iron rod and took away 5 bhar gold and 70 bhar silver along with Rs. 1,25,000/-.

4. Learned counsel for appellant submitted that appellant is innocent and has committed no offence as alleged. Allegation of assault and abuse by caste name is general and omnibus against this appellant. No specific allegation of any overt act is alleged against him. As a matter of fact, son of informant, namely, Praveen Kumar and four accused persons being supporters of the informant, have kidnapped minor daughter of one Rupesh Kumar Chaudhary while she was returning from her school, for which a police case has been registered on 19.10.2022 u/s 364, 366(A) and 34 of IPC against son of informant and other supporters of informant and thereafter, in retaliation this false and concocted case was lodged against this appellant and others. It is not the case of the informant that any member of public was present at the time of incident, and as such, no case under SC/ST Act is made out.

5. Learned special Public Prosecutor for the State opposed the prayer for bail.

6. Considering the aforesaid facts, this appeal is



allowed and the impugned order is set aside. Let the appellant, named above, in the event of arrest/surrender within a period of eight weeks from the date of receipt/production of a copy of this order, be enlarged on bail on furnishing bail bond of Rs. 10,000/- (Ten thousand) with two sureties of the like amount each to the satisfaction of the learned Exclusive Special Judge, SC/ST (POA), Act, Begusarai in connection with SC/ST Police Station Case No. 42 of 2022.

(Prabhat Kumar Singh, J)

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